

Project 8 Advisory NDA Amendments — Founder's Evaluation

LEGAL & BUSINESS PROTECTION REVIEW FOR MANDATE EXECUTION

Date: 5 September 2026

Ref Document: Project8_DailyCab_NDA_Suggested_Changes.pdf (3 Sept 2026)

Reviewed For: Mr. Sanjay Thakur, Founder & MD

1 Article 1: Standard Carve-Outs to Confidential Information

ACCEPT WITH 1 TWEAK

Project 8 added standard exceptions (a-d) regarding public info, prior knowledge, third-party disclosure, and independent development. These are standard in 99% of corporate NDAs. **Accept sub-clauses (a) to (d).**

However, sub-clause (e) excludes agency "ideas, concepts & know-how". To prevent Project 8 from claiming DailyCab's shuttle route models or pooling logic as general know-how, add a brief safeguard:

DailyCab Counter-Text for 1(e): "...consists of general industry knowledge and experience of the Receiving Party without reference to, incorporation of, or reliance upon DailyCab's proprietary route algorithms, passenger pool logic, or trade secrets."

2 Article 2: Non-Solicitation Carve-Outs & Investor Non-Circumvention

ACCEPT + NON-CIRCUMVENTION PROVISION

Project 8 requests exceptions for pre-existing relationships, independent approaches, and publicly available contacts. This is fair for general hiring/networking, but in a fundraising mandate, publicly available contacts must not compromise investor introductions.

DailyCab Protective Addition: "Provided that nothing in this clause shall dilute or exempt the Receiving Party from non-circumvention obligations regarding prospective investors or strategic partners introduced to DailyCab during the mandate."

3 Article 3: Deletion of 24-Month Non-Compete & Exclusivity

ACCEPT DELETION + CONCURRENT CONFLICT FIREWALL

Project 8 deleted the 24-month post-mandate non-compete. Investment advisory firms routinely reject post-mandate non-competes as they advise multiple startups. **Accepting deletion of the 24-month post-term non-compete is recommended.**

Crucial Protection Needed: Project 8 must NOT simultaneously advise a direct intercity shuttle competitor on DailyCab's core MP routes (Indore-Bhopal/Ujjain) during the active mandate, and "unaided memory" (3.4) must exclude source code, route profitability data, and driver payout logic.

DailyCab Counter-Clause: Add Clause 3.5: "During the active mandate term, the Receiving Party shall not provide advisory services to a direct intercity shuttle competitor operating on DailyCab's specific active routes in Madhya Pradesh."

4 Article 6: Deletion of ₹5 Lakh Fixed Penalty

ACCEPTABLE COMPROMISE

Project 8 removed the fixed ₹5,00,000 liquidated damages penalty, replacing it with actual legally recoverable losses under Indian law. Under Sec 74 of Indian Contract Act, court-awarded damages are capped at actual proven loss anyway. Fixed penalty clauses are standard pushback items. **Acceptable compromise** provided DailyCab maintains rights to immediate injunctive relief (court stays against data leak) and full recovery of direct legal costs.

FOUNDER ACTION PLAN FOR DISCUSSION / CALL WITH PROJECT 8

- Green Flags to Share:** Agree to Article 1(a-d) carve-outs, deletion of 24-mo post-mandate non-compete, and removal of ₹5L fixed penalty.
- Non-Negotiable Counter-Points:** (i) Concurrent route-competitor firewall during active mandate, (ii) Non-circumvention clause for introduced investors, (iii) Excluding proprietary algorithms from "unaided memory" exception.
- Next Step:** Email or share these 3 small counter-tweaks to Anish Gaonkar so legal can finalize the NDA within the day.

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